

**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION**  
**10 U.S.C. § 3204**

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.3, the following facts and rationale justify the use of such authority:

**1. Agency and Contracting Activity.**

The Department of Homeland Security (DHS), United States Coast Guard (USCG), Command, Control, Communications, Computers, Cyber and Intelligence Service Center (C5ISC), (CG-9141) proposes to enter a contract on a basis other than full and open competition.

**2. Nature and/or Description of the Action being Approved.**

(a) Nature of the action: the USCG intends to procure brand name products for Unified Support Services, independent of Microsoft Licenses on a sole source basis to Microsoft as there are no authorized resellers.

(b) Name and address of the contractor:



(c) Type of action: Firm Fixed-Price Contract

(d) Estimated total value (including options):

| Period    |        | Total |
|-----------|--------|-------|
| <hr/>     |        |       |
| Base Year | 12 mo. |       |
| Total     |        |       |

(e) Type of funding: Operations and Support Funds

(f) Year of funding: Fiscal Year 2025

(g) Solicitation number: 70Z07925QISD20001

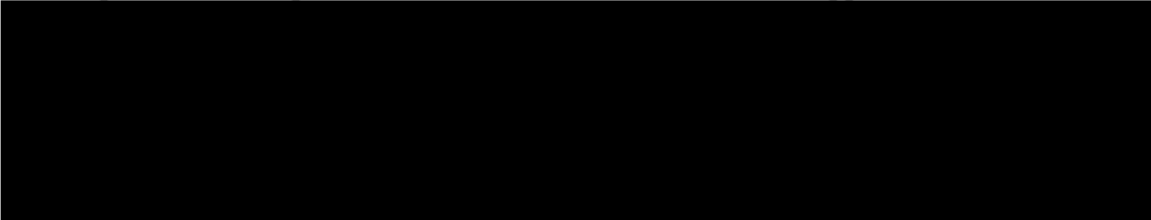
(h) Background information about the requirement:

Microsoft Unified Support Services was previously awarded via an Order on the DHS single-award Microsoft Enterprise Licensing Agreement (ELA) Blanket

Purchase Agreement (BPA) through General Services Administration (GSA).  
The current period of performance is September 30, 2024 – March 29, 2025.

**3. Description of Supplies/Services.**

The requirement is to procure brand name Microsoft Unified Support Services that



**4. Identification of Statutory Authority Permitting Other Than Full and Open Competition.**

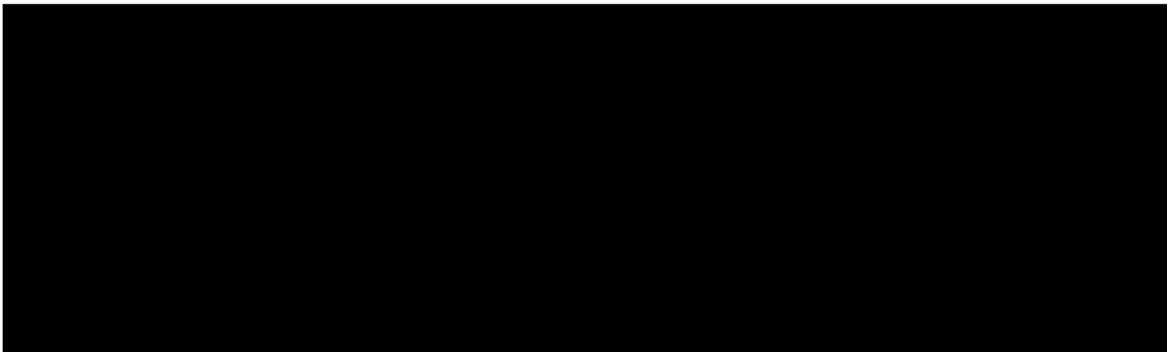
The statutory authority permitting other than full and open competition is 10 U.S.C. § 3204(a) implemented by the FAR Subpart 6.302-1(c) entitled “Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements, Application for brand name” Specifically FAR 6.302-1(c).

**5. Demonstration that the Proposed Contractor’s Unique Qualifications or the Nature of the Acquisition Require Use of the Authority Cited.**

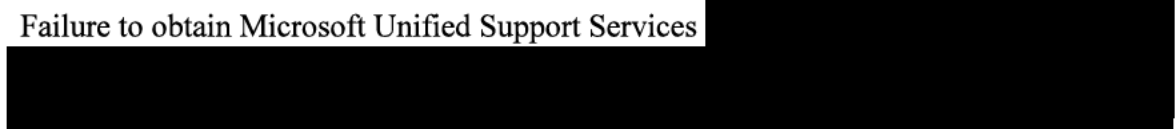
Microsoft products and services are proprietary. The USCG heavily relies on Microsoft Unified Support Services to



The Microsoft products, requiring Unified Support Services, obtained by USCG include but are not limited to



Failure to obtain Microsoft Unified Support Services



[REDACTED]

[REDACTED]. In this case, only [REDACTED] there are no resellers for Microsoft Unified Product Services.

A recent modification of the DHS Microsoft ELA BPA, to correct a misalignment with the GSA schedule contract, no longer allows for the [REDACTED]

[REDACTED] The DHS Microsoft ELA BPA was modified to [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

[REDACTED] To utilize the DHS Microsoft ELA BPA for Unified Support Services, the [REDACTED] which is not in the best interest of the government. Market research has yielded that there are no other GSA schedules or authorized resellers on other vehicles capable of providing Microsoft Unified Support Services, independent of purchasing licensing. As such, Microsoft is the only vendor fully capable of satisfying this requirement and thus, it must be done on a sole source basis.

Due to the proprietary nature of Microsoft Unified Support Services, a recent modification to the existing BPA restricting procurement of unified support services, and USCG's extensive investment in Microsoft products and licensing; it is in the best interest of the government to award a sole source contract to Microsoft Corporation.

**6. Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.**

Based on the results of market research, as outlined in Section 8, only one vendor, Microsoft, can provide the requirement.

**7. Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.**

[REDACTED]

The contracting officer determines that the anticipated prices will be fair and reasonable based on a comparison of proposed prices to GSA schedule pricing and historical pricing for the same procurement strategy [REDACTED] and will conduct a price evaluation.

#### **8. Description of Market Research.**

The USCG conducted market research for contractors that would be fully capable of complying with [REDACTED] Microsoft Unified Support Services [REDACTED] acquired in Task Orders 70Z07923FUCPL0005 and 70Z07924PISD20002.

Microsoft is a brand-name product, essential to the Government's requirements. Market research indicates many vendors provide services associated with Microsoft products, such as, Developer Tools, Office Applications and Online Cloud subscriptions, the USCG [REDACTED] However, Unified Support Services are proprietary; thus, can only be procured directly from Microsoft or from an authorized reseller. The USCG [REDACTED]

A Request for Information (RFI) was released on three separate occasions, from January 2024 to June 2024. The results from the RFIs revealed the only authorized reseller fully capable of providing Brand-Name Microsoft Unified Support was Dell Federal Systems, LLP, through the DHS ELA BPA, which was recently modified to [REDACTED] [REDACTED] In August of 2024, USCG held a series of discussions with Microsoft representatives via phone revealing no other resource, or vendor can meet or support the needs of USCG.

#### **9. Any Other Facts Supporting the Use of Other Than Full and Open Competition.**

N/A

#### **10. A Listing of the Sources, if Any, that Expressed, in Writing, an Interest in the Acquisition.**

Dell Federal Systems LLP. - schedule holder of the Department of Homeland Security (DHS) single-award General Services Administration (GSA) Microsoft Enterprise Licensing Agreement (ELA) Blanket Purchase Agreement (BPA). As per Section 8, they were not capable of providing the required services.

#### **12. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.**

The services are proprietary and used throughout the USCG and will continue to be needed

for the foreseeable future. However, the market will continue to be surveyed to identify other viable and cost-effective solutions before any subsequent acquisitions for similar services.

**13. Contracting Officer's Certification.**

I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Contracting Officer

\_\_\_\_\_  
Date

**14. Technical/Requirements Personnel Certification.**

I certify that this requirement meets the Government's minimum need and that the supporting data, which forms a basis for the justification, is accurate and complete.

[Redacted Signature]

Technical Representative/COR

\_\_\_\_\_  
Date

**APPROVAL:**

[Redacted Signature]

Contracting Officer

[Redacted Signature]

\_\_\_\_\_  
Date

[Redacted Signature]

Procuring Activity Advocate for Competition (PAAC)

\_\_\_\_\_  
Date